

**EXPORT-IMPORT BANK ON BEHALF OF
OFFICE OF THE BOARD OF DIRECTORS TO PROVIDE RECOVERY**

PERFORMANCE WORK STATEMENT (PWS)

March 27, 2025

1.0 INTRODUCTION

EXIM Bank seeks to contract for loan recovery assistance from a recovery firm principally collecting balances of certain paid claims under its credit guarantee and insurance programs.

The Contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform loan recovery services as stated “**standard recovery contract with the Garza Gomez y Asociados S.C. legal services firm, to redocument, register lien and an assignment of contract in a Trust account in the following related cases in Mexico:** [REDACTED] (G752709); and [REDACTED] (G761048) with a total buyer debt of [REDACTED]” as defined in this Performance Work Statement except for those items specified as Government furnished property and services. The service fee for aforementioned services by the law firm total [REDACTED]. If there’s a need to have the law firm perform recovery of the total buyer debt amount a contingency fee will be negotiated.

2.0 BACKGROUND

(a) The Export-Import Bank of the United States (“EXIM Bank”) supports the financing of U.S. goods and services. It assumes credit and country risks the private sector is unable or unwilling to accept. In covering these risks EXIM Bank pays on claims related to insurance policies and guarantees. Upon payment of the claim it becomes the responsibility of the Asset Recovery Group (“ARG”) within the Asset Management Division of EXIM Bank (“AMD”) to seek repayment from the debtor and/or guarantors.

(b) Throughout this document the term “recovery officer(s)” will be used. For the purposes of this document, recovery officer(s) refers to the International Recovery Officers, Working Capital Officers, and Managing Director – Recoveries; within ARG.

3.0 SCOPE

The contractor shall provide collection services and servicing of defaulted loans which may include borrower negotiations, restructuring, and workout agreements. The Contractor shall provide the following but not limited to provide loan recovery services, institute legal proceedings, provide credit restructuring services and take such other actions required to effect recovery for EXIM Bank.

4.0 OBJECTIVES (NATURE OF WORK)

To recover assets, institute legal proceedings and/or loan redocumentation, lien registration and an assignment of contract into a Trust account naming EXIM Bank as a beneficiary related to the claim(s), involving the debtor and guarantor(s).

Desired Outcome: Loan redocumentation, lien registration and assignment of contract in a Trust account naming EXIM Bank as a beneficiary.

5.0 APPLICABLE DIRECTIVES

Full knowledge of the **Mexican** judicial system, duly qualified / registered attorney in **Mexico**, if litigation is pursued.

6.0 GOVERNMENT FURNISHED INFORMATION OR PROPERTY

EXIM Bank will notify contractor by email from the COR as to the specifics of case to be recovered.

7.0 SPECIFIC REQUIREMENTS/TASKS

The firm is to attempt recovery on behalf of and, if provided EXIM Bank's express instruction to do so, institute legal proceedings and/or provide credit restructuring services to EXIM Bank's Asset Management Division ("AMD") related to the referenced claim(s), involving the referenced debtor and guarantor(s), located in **Mexico**.

The firm shall take such other action as AMD may require to effect recovery for EXIM Bank. The firm is instructed to: (i) perform a preliminary research and evaluation of the case, including, but not limited to, asset search, credit analysis and legal actions registered against the Obligor; (ii) attempt extrajudicial collection of the claim amount within 90 days of the date hereof and report the results of such attempt to AMD in acceptable format; and (iii) under written instructions received from AMD, file legal proceedings against the Debtor and the Guarantors if the firm is unable to effect an extrajudicial collection of all amounts due under the claim.

Task 1:

The Contractor shall provide all labor, equipment, materials, postage, supervision, expenses, and travel necessary to conduct collection investigation services for EXIM Bank on the above stated case(s). Before beginning the recovery and collection services, the Contractor shall prepare and forward a written report to the Requesting Officer, outlining the plan for recovery and estimated amount of the defaulted principal that is collectable. Legal services shall be in accordance with the Statement of Work.

Contractor's written report shall be submitted in the suggested format and shall be presented within 60 days of execution of Contract.

Task 2: Filing Fee(s)

This Line Item will be activated by means of a modification only from EXIM Bank's contracting office. The Contractor will forward a written report to EXIM Bank's Requesting Officer, which will outline the costs and risks associated with the anticipated filing fee(s).

Task 3: Payment for Recovery of Defaulted Principal

The Contractor will forward a written report to EXIM Bank's Requesting Officer, which will outline payment and/or payment methods associated with the recovery of the Defaulted Principal Amount. The Contractor will be paid a percentage of all monies collected in accordance with the Case Assignment Letter and in accordance with the Contractor's written report as required by Line Item 0001.

Additional information:

If litigation is required, Contractor shall submit a completed Litigation Request Form in English to AMD for internal approval and authority to proceed. Extraordinary and unusual expenses incurred by Contractor that are outside of the scope of this contract shall be agreed upon in writing in advance or shall not be considered reimbursable expenses.

8.0 DELIVERABLES

Lists any reports or documentation that is required as a deliverable to include the frequency, # of copies, and format. A deliverable is anything that can be physically delivered but may include non-physical things such as meeting minutes. Note: All PWS deliverables should be included in this table. Contractor should include in their proposed schedule a time for the Government to review.

Item #	Deliverable	Section	Format/ Quantities	Due Date
Meet every semester with recovery officer and EXIM Bank's OGC	Report on litigation proceedings / outcome	Task 1, 2, 3	Twice a year	Meetings can happen face-to-face in any location, via virtual media, telephonically

9.0 PERFORMANCE REQUIREMENT SUMMARY (PRS)

The Contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success.

Task or Deliverable	Performance Standard	Acceptable Quality Level (AQL)	Surveillance Method	Performance Rating	Incentives/ Disincentives
Litigation	Performance rating will be based upon the ability of the Contractor to respond to the request and timeliness of the response	99%	Surveillance by EXIM Bank COR will be performed on a monthly	Exceptional (greater than 99.8%) Very Good (between 99.8% and 96%) Satisfactory (between 95.9% and 92%) Marginal (between 91.9% and 90%) Unsatisfactory (less than 90%).	
Schedule	Every 6 months	All deliverables as described in the PWS and specified	100% Inspection	Exceptional Very Good Satisfactory Marginal Unsatisfactory	Ongoing as per Contract
Cost Control	Within Line 2 (legal costs) and Line 3 (actual cash recoveries)	All deliverables as described in the PWS and specified in the approved Schedule of Deliverables	100% Inspection	Exceptional Very Good Satisfactory Marginal Unsatisfactory	
Business Relations	Professional and respectful of all parties	Regular and ad-hoc meetings between contractor and Government	Semi-Annual Performance Evaluation	Exceptional Very Good Satisfactory Marginal Unsatisfactory	Ongoing
Management of Key Personnel	Appropriate credentials for the work involved. Registration within the Mexican judicial system to perform legal work.	Regular and ad-hoc meetings between contractor and Government as needed	Semi-Annual Performance Evaluation	Exceptional Very Good Satisfactory Marginal Unsatisfactory	Ongoing